visusta — make visions real.

Quarterly Strategic Brief

EU & German Sustainability Frameworks
Strategic Outlook for Food Manufacturers

Reporting Period: Q1 2026 (January – March)
Strategic Horizon: Q1 – Q4 2026
Date of Issue: February 1, 2026
Prepared for: Executive Leadership & Board Advisory
Facilities: Hamburg & Rietberg, Germany

CLASSIFICATION: CONFIDENTIAL — INTERNAL USE ONLY

Executive Summary

This Quarterly Strategic Brief provides a medium-term outlook for food manufacturers operating from Hamburg and Rietberg, Germany. Q1 2026 represents a critical window for strategic alignment as multiple EU-level regulations converge: the EU Packaging and Packaging Waste Regulation (PPWR) approaches its August 2026 general application date, the EU Deforestation Regulation (EUDR) deadline moves to December 2026, and Germany finalizes its CSRD transposition to avoid infringement proceedings.

The regulatory environment in early 2026 is characterized by a "deceptive calm." The EUDR delay and LkSG reporting abolition may suggest loosening controls — this is a misinterpretation. The underlying trend is a shift from *process reporting* (filling questionnaires) to *performance mandates* (recyclability grades, deforestation-free verification, wastewater limits). This brief outlines the strategic imperatives and cost implications for the coming quarters.

Quarterly Consolidation — Change Log Coverage

This section is automatically generated from the monthly regulatory change logs available in the system for Q1 2026. It provides traceability and highlights data coverage gaps (if any).

Month	Log Available	# Tracked	# Changes	# Critical
2026-01	NO	—	—	—
2026-02	YES	3	2	1
2026-03	NO	—	—	—

Table 1: Monthly change log availability and headline metrics for Q1 2026.

Topic	Any Change in Q1	Highest Level Observed	Months with Change
GHG	YES	Law passed	2026-02
Packaging	NO	—	—
Water	YES	Change under discussion	2026-02
Waste	NO	—	—
Social / Human Rights	NO	—	—

Table 2: Per-topic consolidation of change signals across Q1 2026 (based on available logs).

Data Coverage Note

One or more monthly change logs for Q1 2026 are not available in the system output directory. Interpretation of Q1 consolidation should consider these missing inputs.

Regulatory Compliance Timeline — 2026

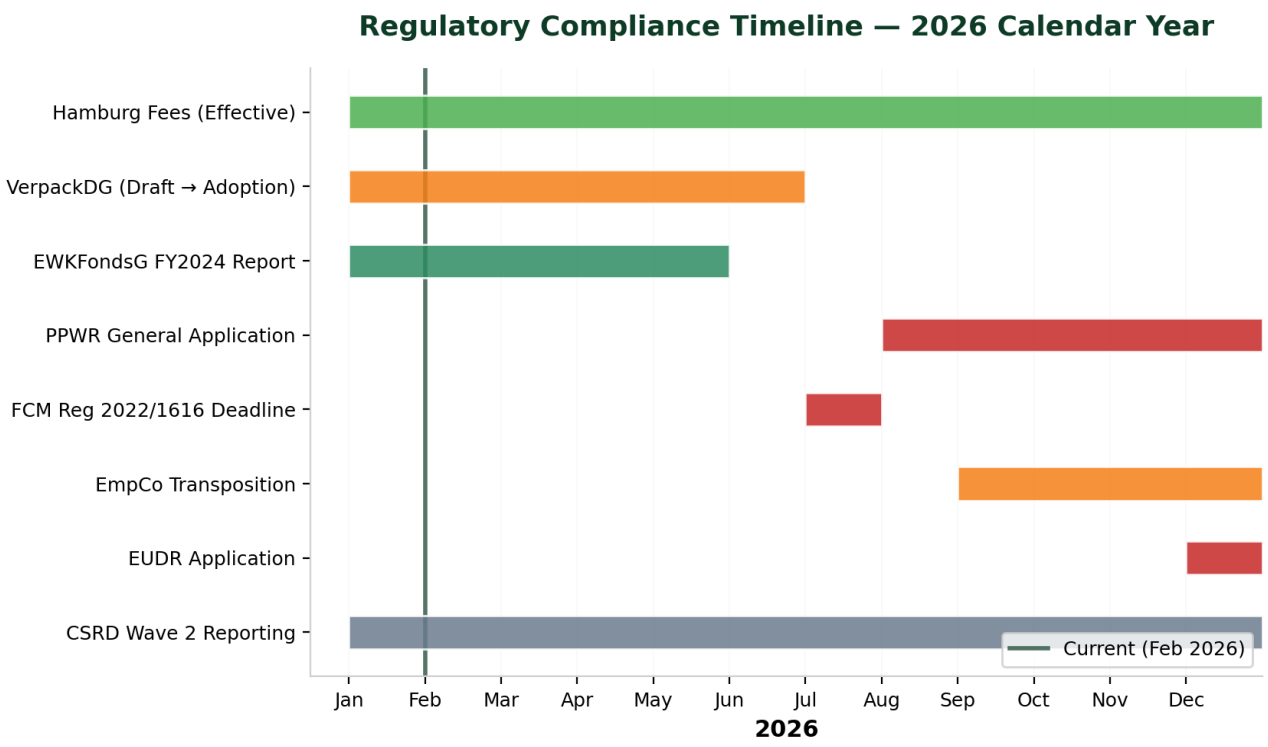

Figure 1: Key regulatory milestones and compliance deadlines across 2026.

Strategic Priority Matrix

Regulation	Priority	Deadline	Primary Impact Area	Investment Type
PPWR (Recyclability)	CRITICAL	Aug 12, 2026	R&D, Packaging	CAPEX + R&D
VerpackDG (B2B EPR)	CRITICAL	Q3/Q4 2026	Logistics, Procurement	OPEX
FCM Reg 2022/1616	HIGH	Jul 10, 2026	Packaging Supply Chain	Supplier Audit
EmpCo (Green Claims)	HIGH	Sep 27, 2026	Marketing, Legal	Artwork Redesign
EUDR	MEDIUM	Dec 30, 2026	Sourcing, IT	IT/API Integration
CSRD Transposition	MEDIUM	TBD (Q2-Q3 2026)	Finance, Reporting	Data Architecture

Table 3: Strategic priority matrix for Q1–Q4 2026 regulatory compliance.

1. EU Packaging and Packaging Waste Regulation (PPWR)

GENERAL APPLICATION: AUGUST 12, 2026

The PPWR entered into force on February 11, 2025, triggering an 18-month transition period culminating on August 12, 2026. Unlike the previous Directive 94/62/EC, the PPWR is a **Regulation** — it applies directly and uniformly across all EU Member States, removing national flexibility. Q1 2026 is the critical window for product and packaging development cycles (6–12 months lead time).

1.1 Design for Recycling — The Grading System (Article 6)

From January 1, 2030, all packaging will be graded on recyclability from A (≥95%) to E (<70%). Grade E packaging will be **effectively banned** from the EU market. Even Grade D may face punitive EPR fees under eco-modulation schemes. While the grading applies from 2030, the requirement for packaging to be *designed for recycling* applies from the general application date in August 2026.

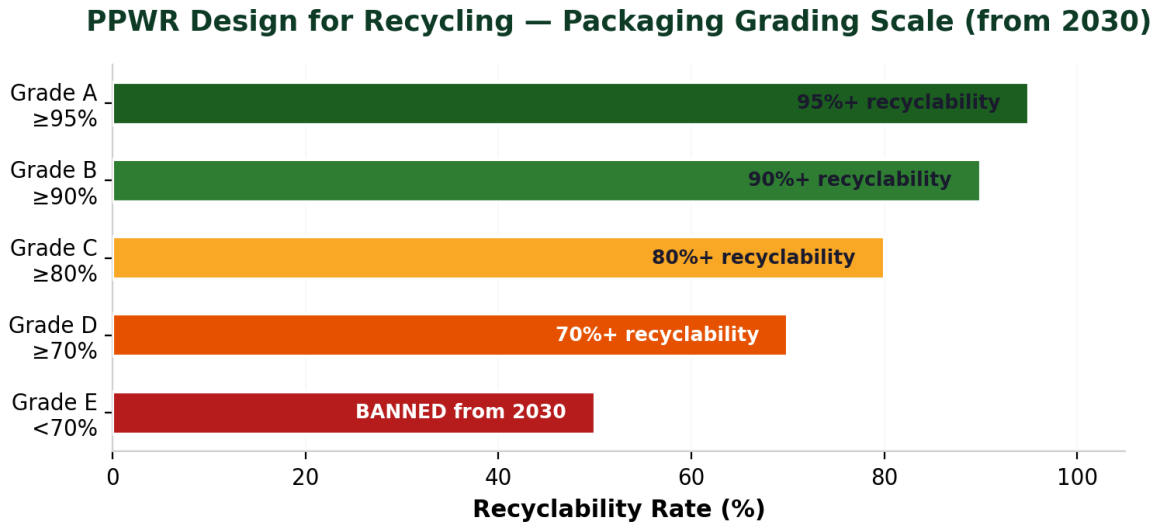

Figure 2: PPWR Design for Recycling grading scale with market exclusion threshold.

ZSVR Bridge Standard

The German ZSVR "Minimum Standard" for 2025 acts as a de-facto bridge to PPWR compliance. It provides specific chemical and physical parameters (e.g., density of polyolefins, solubility of adhesives) currently used to assess recyclability in Germany. Any packaging format failing the current German standard will almost certainly receive a failing grade (D or E) under the future PPWR assessment.

1.2 Packaging Minimization Requirements (Article 9)

The PPWR introduces strict requirements for packaging minimization. Weight and volume must be reduced to the minimum necessary for functionality (protection, hygiene, safety).

Requirement	Specification	Affected Packaging Types
Empty Space Ratio	Maximum 40% for grouped, transport, and e-commerce packaging	Shelf-ready packaging (SRP), e-commerce boxes, retail display trays
Perceived Volume	Prohibited: double walls, false bottoms (unless technically justified)	Primary consumer packaging, promotional packaging
Technical Documentation	Required for every SKU demonstrating compliance	All packaging formats placed on EU market from Aug 2026

Table 4: PPWR Article 9 packaging minimization requirements.

1.3 Recycled Content Targets (Article 7)

The PPWR mandates minimum recycled content in plastic packaging with ambitious 2030 and 2040 targets. Critically, the "Mirror Clause" stipulates that recycled content can only count toward targets if it originates from post-consumer plastic waste collected and recycled in the EU or in a third country with equivalent standards. This restricts the import of unverifiable recycled plastics from non-regulated jurisdictions.

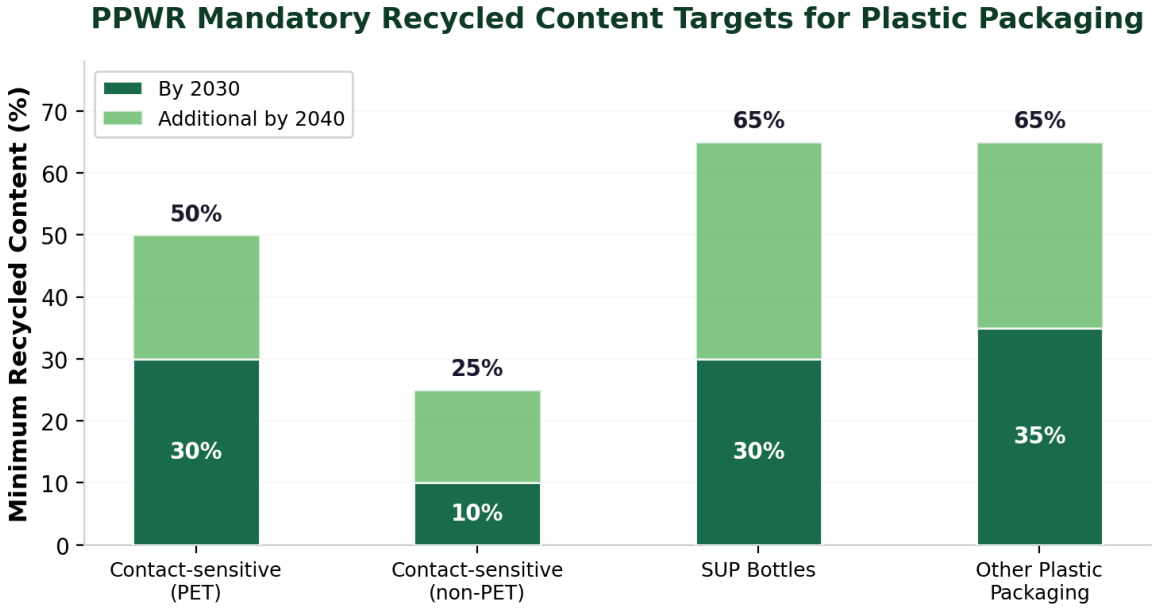

Figure 3: PPWR mandatory recycled content targets for plastic packaging (2030 and 2040).

■ Supply Chain Risk

Companies waiting until 2028–2029 to secure rPET supply contracts will likely face prohibitive prices or supply shortages. The availability of food-grade recycled polymers (rPET, rPP) is severely limited. Forward-buying agreements and partnerships with recyclers should be prioritized **now**.

2. EU Deforestation Regulation (EUDR)

APPLICATION DATE: DECEMBER 30, 2026

The EUDR application date has been delayed by 12 months to December 30, 2026 for large and medium enterprises. This delay results from the unreadiness of the central Information System and the need for simplified compliance for low-risk countries — **not** a weakening of core requirements. The obligation to collect geolocation coordinates (latitude/longitude with 6 decimal places) for every plot of land producing relevant commodities remains unchanged.

The Port of Hamburg is a critical node for EUDR commodities (cocoa, coffee, soy, palm oil). Customs authorities will require the Reference Number of the Due Diligence Statement (DDS) to clear goods for free circulation. A failure in data transfer equals a failure to clear customs.

Commodity	Hamburg Relevance	Data Requirement	Risk Level
Cocoa	Major import via Port of Hamburg	Geolocation + DDS	HIGH
Soy	Significant feed/ingredient import	Geolocation + DDS	HIGH
Palm Oil	Ingredient supply chain	Geolocation + DDS	HIGH
Coffee	Major import hub	Geolocation + DDS	MEDIUM
Cattle (derivatives)	Processed products supply chain	Geolocation + DDS	MEDIUM

Table 5: EUDR commodity risk assessment for Hamburg operations.

Action Plan

Q1 and Q2 2026 should be treated as a "dry run" period. Sourcing teams must collect geolocation coordinates for all relevant commodity inputs. These datasets should be tested for completeness and format compatibility with the EU Traces platform. ERP systems (SAP, Oracle) must be integrated with the Information System API. Waiting until Q4 2026 will result in supply chain paralysis in January 2027.

3. Corporate Sustainability Reporting Directive (CSRD)

GERMAN TRANSPOSITION — FINAL STAGES

Germany missed the July 2024 deadline for transposing the CSRD, leading to infringement proceedings. The national implementation process is now in its final stages. A "Stop-the-Clock" directive at EU level has postponed sector-specific standards and non-EU company reporting by two years.

The German draft implementation act proposes significant relief: companies with fewer than 1,000 employees may be exempted from the first wave of reporting (originally FY 2025, reporting in 2026). This is contingent on the final text. Monitoring the *Bundesgesetzblatt* (Federal Law Gazette) in Q1 2026 is essential.

Reporting Wave	Companies	Reporting Year	Status
Wave 1 (Already Active)	Large PIEs (>500 employees)	FY 2024 (report in 2025)	Active — ESRS applies
Wave 2 (Germany)	Large companies (≥1,000 employees)	FY 2025 (report in 2026)	Pending — German threshold may apply
Wave 2b (Possible Reprieve)	Large companies (500–1,000 employees)	Potentially FY 2027	Pending final German law
Wave 3	Listed SMEs	FY 2026 (report in 2027)	Stop-the-Clock delay possible

Table 6: CSRD reporting wave timeline with German implementation status.

4. Food Contact Materials — The July 2026 Cliff Edge

DEADLINE: JULY 10, 2026

Commission Regulation (EU) 2022/1616 establishes a new harmonized framework for recycled plastics in food contact materials (FCM). The transition period for "novel technologies" and legacy processes ends on **July 10, 2026**. After this date, only recycled plastics produced by a "suitable recycling technology" (currently primarily mechanical PET recycling) or authorized novel technologies can be placed on the market.

Technology	Status	Food Contact Legality After Jul 2026
Mechanical PET Recycling	Suitable Technology (Established)	■ Authorized
Mechanical PP/HDPE Recycling (food-grade)	Novel Technology (EFSA assessment)	■ Only if registered + authorized
Solvent-based Polyolefin Recycling	Novel Technology (National provisional)	■ Illegal unless EU-authorized by deadline
Pyrolysis (Chemical Recycling)	Novel Technology (Mass balance debate)	■ Only if registered + authorized

Table 7: FCM recycling technology authorization status under Reg 2022/1616.

■ Urgent Supplier Audit Required

Manufacturers must audit packaging suppliers providing recycled content (other than mechanically recycled PET). Each supplier must provide evidence of their status under Reg 2022/1616 — specifically, their registration in the Union Register of technologies and processes. Failure to verify creates a risk of placing illegal food contact materials on the market.

5. Green Claims & Anti-Greenwashing (EmpCo Directive)

TRANSPOSITION DEADLINE: SEPTEMBER 27, 2026

The "Empowering Consumers for the Green Transition" (EmpCo) Directive, published in March 2024, must be transposed by Member States by September 27, 2026. This directive fundamentally alters the landscape of environmental marketing by expanding the list of banned unfair commercial practices.

Banned Practice	Current Common Usage	Required Alternative
"Climate Neutral" based on offsetting	Carbon credit labels on food packaging	Claims must be based on actual lifecycle emission reductions within the value chain
"CO2 Positive" based on offsets	Marketing campaigns highlighting neutrality	Scope 1, 2 & 3 reduction evidence required
Generic environmental claims without substantiation	"Eco-friendly," "Green Product" labels	Must be verifiable with specific evidence and methodology

Table 8: EmpCo Directive impact on food brand marketing claims.

Marketing De-Risking

Marketing departments must audit **all packaging artwork**. Any "Carbon Neutral" badges or claims based on offsetting must be phased out in the next design cycle to ensure inventory reaching shelves in Q4 2026 is compliant. In Germany, this will likely be transposed as an amendment to the *Gesetz gegen den unlauteren Wettbewerb* (UWG).

6. Consolidated Financial & Budgetary Impact (2026)

The convergence of these regulations creates a compounding cost effect. The following table summarizes the estimated regulatory cost drivers for the 2026 fiscal year:

Regulatory Driver	Cost Component	Est. Magnitude	Timeline
Hamburg Wastewater	Increased unit rate	+3.3% on sewer fees	Effective Jan 1, 2026
VerpackDG (Draft)	New B2B EPR levy	~€5.00/tonne	Expected Q3/Q4 2026
EWKFondsG	Plastic levy	€0.17–€1.24/kg (item specific)	Accrual ongoing; payment May 2027
PPWR Compliance	Redesign & testing	One-off R&D + tooling costs	Q1–Q3 2026
EUDR Logistics	Data administration	High admin/IT overhead	Ongoing through 2026
FCM Supplier Audit	Verification & testing	Moderate (consultancy + lab)	Q1–Q2 2026
EmpCo Artwork Redesign	Packaging artwork reprint	Moderate (per SKU)	Q2–Q3 2026

Table 9: Estimated 2026 regulatory cost drivers across all frameworks.

6.1 Capital Investment Requirements

Investment Area	Purpose	Priority	Est. Timeframe
Logistics IT / API Integration	EUDR Information System + OfH reporting	HIGH	Q1–Q2 2026
Production Machinery (Labelling)	Dynamic QR coding for PPWR digital compliance	MEDIUM	Q2–Q3 2026
Water Efficiency (Hamburg)	MBR/condensate recovery to offset fee hikes	MEDIUM	Q2–Q4 2026
R&D Packaging Redesign	Mono-material transition, minimization, rPET sourcing	CRITICAL	Q1–Q3 2026

Table 10: Priority capital investment requirements for 2026 compliance.

7. Strategic Roadmap — Q1 2026 Recommended Actions

For the Hamburg facility, the strategic imperative is **digital logistics**: the ability to attach a geolocation dataset to a shipment of cocoa or soy is now as important as the physical bill of lading. For the Rietberg facility, the imperative is **circular engineering**: aligning with the NRW strategy and VerpackDG requirements means ensuring that every kilogram of packaging and every liter of wastewater is minimized, valorized, or recycled.

❶ Audit B2B Packaging

Immediately quantify the volume of transport packaging used. Calculate potential financial exposure under the new VerpackDG levy (€5/tonne) and prepare to join an authorized OfH.

❷ Verify Recycled Plastic Sources

Launch a supplier audit to ensure all recycled plastic materials (FCM) are supported by a valid authorization or "novel technology" registration under EU 2022/1616 before July 2026.

❸ Marketing De-Risking

Initiate the phase-out of "Climate Neutral" claims on all packaging artwork to ensure compliance with the EmpCo Directive by late 2026.

❹ EUDR Data Pilot

Utilize the 12-month delay to run full-scale data collection pilots with high-risk suppliers, identifying gaps without the threat of immediate trade disruption.

❺ PPWR Portfolio Audit

Audit the entire packaging portfolio against the ZSVR 2025 Minimum Standard. Prioritize mono-material transition and secure rPET forward-buying agreements.

❻ Water Efficiency Business Case

Recalculate ROI for MBR and condensate recovery systems in Hamburg given the 3.3% fee hike. Submit CAPEX proposals by end of Q1 2026.

References

The following sources underpin the analysis in this report. All URLs were accessed on February 1, 2026.

[1] "Änderung städtischer Gebühren ab 2026," Hamburg.de — https://www.hamburg.de/politik-und-verwaltung/behoerden/finanzbehoerde/aktuelles/aenderung-staedtischer-gebuehren-ab-2026-1123310

[6] "Germany: Circularity Made in Germany — The NKWS has been adopted," Baker McKenzie — https://insightplus.bakermckenzie.com/bm/environment-climate-change_1/germany-circularity-made-in-germany-the-national-circular-economy-strategy-nkws

[11] "Germany — New Draft of The VerpackDG," Recoup — https://www.recoup.org/members-update/germany-new-draft-of-the-packaging-law-implementation-act-verpackdg/

[13] "Unpacking Germany's Draft Packaging Act 2025," ComplianceAndRisks — https://www.complianceandrisks.com/blog/unpacking-germanys-draft-packaging-act-2025-what-is-new-and-what-stays-the-same/

[14] "Neues VerpackDG: Referentenentwurf vorgelegt," ZENTEK — https://www.zentek.de/referentenentwurf-fuer-ein-neues-verpackungsrecht-durchfuehrungsgesetz-verpackdg/

[17] "Germany — Federal government abolishes reporting obligations under the LKSG," GlobalNorm — https://compliance.globalnorm.de/en/product-compliance-news/detail/germany-federal-government-abolishes-reporting-obligations-under-the-lksg/

[20] "Packaging waste — European Commission," environment.ec.europa.eu — https://environment.ec.europa.eu/topics/waste-and-recycling/packaging-waste_en

[22] "Packaging and packaging waste (from 2026)," EUR-Lex — https://eur-lex.europa.eu/EN/legal-content/summary/packaging-and-packaging-waste-from-2026.html

[24] "2025 minimum standard published," ZSVR — https://www.verpackungsregister.org/en/foundation-authority/press-media-section/newsdetail/2025-minimum-standard-published

[29] "European Commission Proposes Further One-Year Delay to the EUDR," Latham & Watkins — https://www.lw.com/en/insights/european-commission-proposes-further-one-year-delay-to-the-eu-deforestation-regulation

[33] "Germany Moves Forward with CSRD Transposition," Debevoise — https://www.debevoise.com/insights/publications/2025/09/germany-moves-forward-with-csrd-transposition

[37] "Commission Regulation (EU) 2022/1616 on recycled plastic materials," CCRI — https://circular-cities-and-regions.ec.europa.eu/support-materials/eu-regulations-legislation/commission-regulation-eu-20221616-recycled-plastic

[38] "New Recycling Regulation for Plastic Materials," FSAI — https://www.fsai.ie/business-advice/running-a-food-business/food-safety-and-hygiene/food-contact-materials/new-recycling-regulation-for-plastic-materials

[41] "What the Green Claims Directive means for companies," KPMG-Law — https://kpmg-law.de/en/what-the-green-claims-directive-means-for-companies-an-overview/

[42] "Directive to empower consumers for the green transition has been published," Bird & Bird — https://www.twobirds.com/en/insights/2024/global/directive-to-empower-consumers-for-the-green-transition-hasn-adopted

[44] "Germany to implement Single-Use Plastics levy from 2024," EY — https://www.ey.com/en_gl/technical/tax-alerts/germany-to-implement-single-use-plastics-levy-from-2024--extendi

Disclaimer: This report is based on regulatory data and legislative drafts available as of February 1, 2026. Legislative texts, particularly the German VerpackDG and the national implementation of CSRD, are subject to parliamentary amendment prior to final adoption. This document does not constitute legal advice.

© 2026 visusta GmbH — visusta.ch — All rights reserved.